

2. The rate of pay shall remain unchanged during the first twenty (20) working days of such assignment. Emergency or temporary appointments must be made in writing and approved by the City Manager.

3. After twenty (20) continuous working days of such temporary assignment, the employee working out-of-class shall be paid at Step A of the higher classification, or a rate one (1) step greater than his/her current rate, whichever is deemed appropriate compensation for the level of duties assigned and performed. The amount of additional pay awarded shall be determined by the City Manager. The higher rate of pay shall be used in computing overtime when authorized overtime is served in a non-exempt, out-of-class assignment; the overtime rate shall be at the rate established by the overtime regulations that apply to the higher class.

4. Time worked out-of-class shall not earn credits toward the completion of probationary requirements in the higher class.

K. Provisional Appointment.

1. In the absence of individuals willing to accept appointment from appropriate employment lists, a provisional appointment may be made by the Human Resources Director of a person meeting the minimum training and experience qualifications for the position. Such appointment may be made during the period of suspension, demotion or discharge of an employee; and the Human Resources Director subject to the provisions of these Rules may fill such vacancy. A provisional employee may be removed at any time from the provisional appointment without the right of appeal or hearing. No provisional appointment shall exceed one thousand forty (1,040) hours. Employees appointed on a provisional basis shall not be entitled to a preference in hiring or a right to a regular position.

2. A provisional appointee shall accrue the same benefits as probationary employees. If a provisional appointee is selected for a full-time position with the City, the time served as a provisional employee shall be counted as time toward the fulfillment of the required probationary period.

3. No special credit shall be allowed in meeting any qualifications or in the giving of any test or the establishment of any open-competitive promotional list, for service rendered under a provisional appointment.

4. Salary upon provisional appointment shall be the beginning salary in the range, or five percent (5%) above the previous salary, whichever is higher. If the provisional employee is subsequently returned to his/her previous position, the previous salary shall be reinstated, unless an anniversary evaluation has occurred which warrants a merit increase.

Rule 27 **Retirement Benefits**

Public Employees Retirement System. Unless otherwise exempted, all employees of the City who work at least one thousand (1,000) hours per year are automatically covered by the City's contract with the California Public Employees Retirement System ("PERS").

Rule 28 **Fringe Benefits**

Enrollment in Health Insurance, Dental Insurance and Vision Care Coverage. All regular employees who are employed on a full-time basis, except seasonal and temporary employees (forty [40] hours per work), shall be eligible for health, dental and vision insurance coverage, which becomes effective on the first of the month following the employment date and continuing throughout the month of separation. The City provides a Flexible Health Benefit Plan with a monthly cap where employees can choose an appropriate health plan for them and their families. Fringe benefits may be altered on a year-by-year basis as the City's sole discretion. Regular part-time employees receive prorated benefits if they are regularly assigned to work more than twenty (20) hours per week, except seasonal and temporary employees.

Rule 29 **Training and Development**

A. Policy. An employee may be reimbursed for tuition, textbooks and institutional fees incurred in successfully completing job-related course work and seminars from an accredited educational institution. Course work and seminars must be approved in advance by the City Manager to be eligible for reimbursement upon proof of successful completion of course work. The maximum benefit per year per employee shall be as determined in advance by the City Manager, within the amount adopted for such purpose in the annual City budget. If the employee voluntarily leaves the employment of the City within one (1) year of completion of course work, the employee shall reimburse the City funds received for educational reimbursement for said course work.

B. Conferences, Seminars, Academic Courses. If an employee requests to attend a conference, seminar or academic course and it is approved, the City will pay all reasonable costs of travel, meals, lodging, registration or tuition, books and eight (8) hours pay per day of the employee's normal work week, in accordance with this Rule and in accordance with the City's adopted expense reimbursement policies. The employee may either receive an advance of funds for the conference or reimbursement of funds spent by the employee. The employee should request attendance at the conference or seminar as far in advance as possible, but in no case any later than two (2) weeks prior to the conference. The employee's request for attendance must be approved by the employee's supervisor, Department Director and the City Manager.

C. Employee Orientation. All new employees and newly promoted employees will be given an employee orientation to their new job duties and the policies, procedures and operation of the department that is appropriate to their position. It is the Department Director's responsibility to provide the orientation to those new employees or newly promoted employees under their supervision. The orientation shall consist of training in job duties and responsibilities; these Rules; and the mission, policies, procedures and operation of the department.

D. Required Training. At times, the employee may be required to attend certain training courses. The training is part of the employee's continuing job responsibilities and must be attended. The City will pay the employee's salary and all costs of the required training.

Rule 30 **Travel and Expense Reimbursement; Vehicle Use Policies**

A. Travel and Expense Reimbursement. Travel and expense reimbursement shall be made in accordance with the City's adopted policies and procedures.

B. Use of City-Owned Vehicles and Privately-Owned Vehicles in the Course of City-Related Business. The following policy sets forth the appropriate use of City-owned vehicles and privately-owned vehicles in the course of City-related business.

1. General Provisions.

a. This policy establishes procedures regarding the effective and economical usage of City-owned and privately-owned vehicles operated during the course of City-related business. Use of City-owned vehicles shall be relied upon as the primary means of vehicle usage, as this practice provides the greatest control over operating costs, usage, maintenance, inspection and insurance.

b. The use of City vehicles is a matter of public trust and requires all employees to maintain a special awareness of that trust. When using City vehicles, all employees must avoid a conflict, or appearance of conflict, between public employment and their private lives. They must avoid any action, whether or not specifically prohibited by this or other instruction or law, which results in, or can reasonably be expected to create, the appearance of wrongdoing. This Vehicle Use Policy shall be applicable to all employees except those with whom the City has different contractual obligations.

c. No passenger will be allowed in any City vehicle other than those whose presence is necessitated by official business except where approval is given in advance by the City Manager or his/her designee.

d. Employees may be permitted to retain a City vehicle at their residence, subject to the conditions and provisions outlined in this policy, or in any written agreement which was approved prior to the adoption of these Rules. Employees who are permitted to retain a City vehicle overnight as a source of transportation to respond to emergencies and to travel to and from work will not use it for any other purpose, allow others to use the vehicle or allow others to ride as passengers in the vehicle without prior approval of the City Manager or designee.

e. Employees shall obey all Federal, State and local laws while operating either City-owned or privately-owned vehicles operated pursuant to official City-related business.

f. Employees will be personally responsible for any traffic violations issued to them while operating City vehicles.

g. Out-of-state use shall be approved in advance by the City Manager or designee.

- h. Smoking inside a City vehicle is prohibited at all times.
- i. Mechanical problems must be reported immediately to the Public Works Department.

2. Vehicle Types and Use.

a. Use of City-Owned Vehicles. City-owned vehicles fall into the following three (3) categories and have restrictions based upon type and use:

(1) Vehicles that are kept overnight at City facilities and are assigned for use on a shared or designated basis during the course of daily City business. Personal use is expressly prohibited.

(2) Vehicles that are assigned to managers on a permanent basis and used for daily commuting to and from work. According to the Internal Revenue Service, commuting to and from work and any other incidental personal usage is not considered official use, and shall be reported as taxable income.

(3) Vehicles that are designed for emergency or on-call use, and authorized for use to and from work in order to respond on a twenty-four (24) hour basis. Employees authorized to operate emergency or on-call vehicles may make reasonable, but limited personal related stops, before and after assigned work shifts while traveling to and from work.

b. Only City employees are authorized to operate City-owned vehicles.

c. City-owned vehicles are for transporting only those employees whose duties require the use of a motor vehicle and such other persons whose business activities are important to the City's interests.

d. Under no circumstances shall family members or friends be transported in City-owned vehicles, including those that are authorized for use commuting to and from work or designated for emergency or on-call use.

e. Employees who have a City-owned vehicle permanently assigned to them and/or City-owned vehicles assigned for use within their department are responsible for ensuring that only those persons with a valid driver's license and on official City business are allowed the use of the City-owned vehicle.

C. Use of Privately-Owned Vehicles. Use of privately-owned vehicles in order to conduct City business will be authorized only when City vehicles are not available. When such is the case, the following shall apply:

1. Private vehicles should be in good mechanical condition. Authorized drivers must possess a valid California driver's license. Employees may use their privately-owned vehicles upon authorization of their supervisor.

2. It is the responsibility of the individual utilizing his/her privately-owned vehicle to maintain accurate records of the purpose and extent of the travel and to make substantiated claims for reimbursement per the City's reimbursement policy. The vehicle and/or mileage allowance is intended to cover the employee's cost of operating the vehicle on City business, including the cost of insurance. Further, all operating expenses of the privately-owned vehicles are to be borne by the employee. This includes, but is not limited to, gasoline, oil, maintenance, wear and tear, depreciation and insurance.

3. Employees must acquire adequate private liability and property damage insurance coverage that meets the minimum required by California State law.

D. Use of Electronic Devices. Employees shall refrain from operating cellular telephones, laptop computers, navigational devices and any other device that may cause vehicle operator distraction while operating a City-owned or privately-owned vehicle in the course of conducting City business. Employees shall make every attempt to properly park their vehicle or use a hands-free device when using such equipment.

E. Driver Training. Those employees who drive City-owned vehicles are required to complete a defensive driver training course. Employees who are regularly using privately-owned vehicles as part of their essential job functions may also be required to complete a defensive driver training course.

1. New employees shall complete a defensive driver training at the first available course date after the commencement of employment. Instruction shall also be provided to make certain that such employees are familiar with this policy.

2. Current employees who change assignments to include driving a City-owned vehicle are similarly required to complete the provisions as stated in this Rule.

3. All employees who are required to participate in defensive driver training shall be required to repeat such training at least once every three (3) years. It is the department head's responsibility to determine which employees are required to take such training.

F. Accident Reporting Requirements. Any accident involving a City-owned vehicle, rented or leased vehicle or privately-owned vehicle used in the performance of City duties shall be reported as follows:

1. The vehicle operator shall summon medical care for any injured parties.

2. The vehicle operator shall notify appropriate law enforcement agencies.

3. The vehicle operator shall collect information about the other parties involved by completing the “Accident Kit” located in the City vehicle’s glove box or obtained from the Public Works Director.

4. The vehicle operator shall notify his/her supervisor. The supervisor shall be responsible for initiating the departmental investigation of the accident and notification to Risk Management immediately. In the event of serious bodily injury, an Incident Report form shall be completed by the supervisor and submitted to Risk Management.

G. Assignment of Vehicles.

1. Category I: Twenty-Four (24) Hour Retention. The City vehicle is assigned to the employee on a full-time basis. Subject to the approval of the City Manager, employees authorized for such use may retain their assigned City vehicles at home when off-duty, contingent upon the need to respond to emergencies or other direction of the City Manager or designee. No personal use of City vehicle shall be permitted.

2. Category II: Duty Hour Retention. Use of the City vehicle is limited to duty hours, and the vehicle is normally housed at approved City facility. Vehicles may be occasionally driven home when it is in the City’s best interest, with the prior approval of the City Manager or designee. No personal use of City vehicle shall be permitted.

H. Insurance.

1. Employees who use their own automobiles in the performance of their duties must have a valid California driver’s license and carry automobile liability insurance at least equal to the minimum requirements of the California Vehicle Code. Employees who do not meet the above requirements shall not be permitted to use private vehicles on City business until such requirements are met. Department directors are responsible for enforcing this limitation.

2. Articles carried in motor vehicles such as City-owned books and equipment are considered cargo and are not a part of automobile theft coverage.

I. Storage of Vehicles.

1. City Storage Locations. City vehicles, other than Category I, must be parked overnight at approved storage locations. Permission to garage at other locations must be obtained in advance from the City Manager or designee.

2. At Residence. City vehicles authorized to be garaged at private residences shall be stored off the street and undercover, if possible.

J. Acknowledgment of Policy. Employees authorized to use either a City vehicle or his/her privately-owned vehicle on City business shall sign a form acknowledging that he/she is aware of this policy, including the legal issues arising out of the use of his/her privately-owned vehicle on City business.